

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

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Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

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Date: September 18, 2026

2	Shannon vs. Vincent Builders, Inc. 2024-01395572	Motion for Summary Judgment and/or Adjudication Preliminary issue Vincent has filed a "reply" to the separate statement of Mike Taylor Roofing (MTR) in support of its opposition to Vincent's separate statement. The court proceeds with caution when considering that document (ROA #483.)
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		California Rules of Court, Rule 3.1354, which governs written objections to evidence in summary judgment proceedings, contemplates the existence of a separate statement in reply to a motion, referencing objection numbers in the right column of a separate statement in opposition or reply to a motion. However, § 437c's prohibition on new evidentiary matter or additional material facts in the reply operates as a substantive constraint on any such document. In <i>San Diego Watercrafts, Inc. v. Wells Fargo Bank</i> (2002) 102 Cal.App.4th 308, the court held that a trial court's consideration of evidence in a summary judgment movant's supplemental declaration submitted in reply to the opposition violated the non-movant's due process rights, because the evidence was not disclosed in the separate statement of undisputed facts and was not filed until after the non-movant had already responded to the issues raised in the separate statement. That case underscores that the opposing party must be informed of the issues it is required to meet, and introducing new facts or evidence through a reply separate statement deprives the opposing party of that notice. The moving party's reply is therefore limited to responding to arguments and evidence already placed at issue by the opposition. A reply separate statement that merely responds to the opposing party's separate statement — without introducing new facts or evidence — may be permissible as a practical matter, but § 437c expressly prohibits any reply separate statement that introduces new material facts or evidentiary matter not already presented. Courts have discretion to disregard or strike reply papers that exceed these bounds. In General – burden Where, as here, a contractor moves for summary judgment against a subcontractor on claims of duty to defend and duty to indemnify, the contractor bears the initial burden of establishing that no triable issue of
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		material fact exists and that it is entitled to judgment as a matter of law — which, in the indemnity context, requires demonstrating the existence of the contractual obligation and the facts triggering it, including that the claims at issue arose from the subcontractor's scope of work. Ca. Code Civ. Pro. § 437c provides that a motion for summary judgment shall be granted if all papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. The court considers all evidence submitted and all inferences reasonably deducible from that evidence, but summary judgment shall not be granted based on inferences that are contradicted by other inferences or evidence raising a triable issue. Indemnity claims – in general The duty to defend is distinct from, and broader than, the duty to indemnify. In <i>Crawford v. Weather Shield Mfg., Inc.</i> (2008) 44 Cal.4th 541, the California Supreme Court held that a subcontractor's contractual duty to defend arises from the outset of any suit against the general contractor insofar as that suit includes claims alleging damage or loss arising from the subcontractor's work, even if it is later determined that the subcontractor was not negligent. Accordingly, to prevail on summary judgment on a duty-to-defend claim, the contractor must establish that the underlying suit was founded upon claims growing out of the subcontractor's work — the duty applies even if the allegations against the subcontractor were ultimately unsuccessful or even frivolous. <i>Pulte Home Corp. v. CBR Electric, Inc.</i> (2020) 50 Cal.App.5th 216. For the duty to indemnify, the contractor must demonstrate that the indemnity clause covers the loss at issue. In <i>Centex Golden Construction Co. v. Dale Tile Co.</i> (2000) 78 Cal.App.4th 992, the court held that an indemnity provision requiring the subcontractor to indemnify the contractor
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	with respect to all work covered by or incidental to the subcontract may obligate the subcontractor to indemnify even if the underlying claim was not meritorious and the subcontractor was not found negligent — provided the contractor establishes that the claim arose with respect to the subcontractor’s work. The contractor’s burden does not shift to the subcontractor unless the contractor first presents sufficient evidence to establish the predicate elements. A contractor moving for summary judgment on an indemnity claim must affirmatively present evidence establishing the triggering conditions of the indemnity agreement. Additionally, California Civil Code § 2778 provides that a person indemnifying is bound, on request of the person indemnified, to defend actions or proceedings brought against the latter in respect to the matters embraced by the indemnity. Merits The main issue for the court’s determination is whether the contract between Vincent and MTR creates a duty on the part of MTR to defend and indemnify Vincent as a result of this litigation. The second minor issue for the court is to weigh the merit of MTR’s assertion that this motion is premature and should be postponed until a determination or allocation of liability has been made as to MTR’s responsibility for the Shannon’s damages. Contractual duty to defend MTR argues the Agreement makes reference to, but fails to define terms, “Sub-Consultant” or “Consultant” or “Indemnified Parties” in the context of the defense and indemnification obligations. But Vincent points out that MTR and Vincent are respectively and unambiguously defined as “Subcontractor” and “Contractor” in the
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		Agreement, implying and/or creating a duty to defend and indemnify. The enforceability of an indemnity agreement turns primarily on contractual interpretation and the intent of the parties as expressed in the agreement. As stated in <i>Centex Golden Construction Co. v. Dale Tile Co.</i> (2000) 78 Cal.App.4th 992, the question whether an indemnity agreement covers a given case turns primarily on contractual interpretation, and it is the intent of the parties as expressed in the agreement that should control. Further, the court in <i>Continental Heller Corp. v. Amtech Mechanical Services, Inc.</i> (1997) 53 Cal.App.4th 500 confirmed that indemnity agreements are construed under the same rules governing the interpretation of other contracts, and the contract must be interpreted so as to give effect to the mutual intention of the parties, with the intention ascertained from the clear and explicit language of the contract. Civil Code § 1636 likewise provides that a contract must be interpreted to give effect to the mutual intention of the parties as it existed at the time of contracting. The label or title given to the parties in a contract is not itself dispositive; what matters is whether the substantive indemnity obligation is clear and the parties' intent to be bound is evident. California Civil Code § 2778 provides the default rules for interpreting indemnity contracts. Under subdivision (4), the person indemnifying is bound, on request of the person indemnified, to defend actions or proceedings brought against the latter in respect to the matters embraced by the indemnity. Subdivision (3) further provides that an indemnity against claims, demands, or liability, expressly or in other equivalent terms, embraces the costs of defense against such claims incurred in good faith and in the exercise of a reasonable discretion. The California Supreme Court in <i>Crawford v. Weather Shield Manufacturing, Inc.</i> (2008) 44 Cal.4th 541, held that where a subcontract required the subcontractor to defend any suit
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		or action founded upon any claim growing out of the execution of the work, the subcontractor was required to provide a defense even though it was later determined the subcontractor was not negligent. The duty to defend arises when the action is brought and covers any claim that alleges facts that would give rise to a duty of indemnity. This principle applies regardless of how the parties are labeled in the agreement, so long as the indemnity clause itself is sufficiently clear. Civil Code § 2782 renders void any construction contract provision purporting to indemnify a party for its own sole negligence or willful misconduct. Section 2782.05 further defines "subcontractor" functionally — as a person who has entered into a construction contract either with a contractor to perform a portion of that contractor's work, or with any person to perform a construction contract subject to the direction or control of a general contractor or construction manager. This functional definition means that a party labeled "subconsultant" who is performing construction work within the scope of a contractor's agreement may still be treated as a "subcontractor" for purposes of the statutory indemnity framework, regardless of the label used. Where a contract between a contractor and a subcontractor uses the terms "consultant" and "subconsultant," California's intent-based approach to contract interpretation means the indemnity and defense obligations will be enforced if the substantive language of the agreement clearly reflects the parties' intent to allocate risk and provide defense and indemnification. The mislabeling of the parties does not, by itself, void an otherwise clear and express indemnity provision. Courts will look to the actual relationship of the parties, the scope of work described, and the operative language of the indemnity clause to determine whether the obligation is enforceable. Centex Golden Const. Co. v. Dale Title Co. (2000) 78 Cal.App.4th 992; Continental Heller Corp. v. Amtech
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		Mechanical Services, Inc. (1997) 53 Cal.App.4th 500. Here, the indemnity provision is appended to the subcontract as "Attachment D" and refers to the "Lown Residences Subcontractor:" (See ROA #345, page 9.) It is true that subdivision (a) and some of the following paragraphs use the terms "consultant" and "sub-consultant", but the only two parties to the agreement are Vincent and MTR. MTR's signature is under the title "Subcontractor". Per the case law above, the mislabeling of the parties does not, by itself, void an otherwise clear and express indemnity provision. The actual relationship of the parties, the scope of work described, and the operative language of the indemnity clause supports a finding that the indemnity provisions are enforceable. Centex Golden Const. Co. v. Dale Title Co. (2000) 78 Cal.App.4th 992; Continental Heller Corp. v. Amtech Mechanical Services, Inc. (1997) 53 Cal.App.4th 500. Necessity of determination of liability MTR contends that prior to considering the motion for summary judgment, a determination of its liability needs to be made. Not so. There is a clear distinction between the duty to defend and the duty to indemnify. The duty to defend requires one party to assume responsibility for the other's legal defense when a third-party claim is made, while the duty to indemnify requires one party to indemnify the other for moneys paid or expenses incurred as a result of a third-party claim. Crawford v. Weather Shield Mfg. Inc. (2008) 44 Cal.4th 541. Unlike the duty to defend, a contractual duty to indemnify does not arise until liability is proven. Aluma Systems Concrete Construction of California v. Nibbi Bros. Inc. (2016) 2 Cal.App.5th 620. The duty to defend necessarily arises as soon as the specified claims are made against the promisee, and therefore arises before the litigation to be defended has determined whether indemnity is actually owed. Aluma, id
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	The law implies in every indemnity contract, unless the contract provides to the contrary, the duty to defend claims which, at the time of tender, allege facts that would give rise to a claim of indemnity. <i>City of Bell v. Superior Court</i> (2013) 220 Cal.App.4th 236. Even where an indemnity agreement contains a negligence-based exception — such as language carving out liabilities that arise out of, pertain to, or relate to the negligence of the Owner — courts have rejected the argument that such an exception requires a prior finding of negligence before the duty to defend is triggered. In <i>UDC-Universal Dev., L.P. v. CH2M Hill</i> (2010) 181 Cal.App.4th 10, the court rejected the indemnitor’s argument that a jury’s eventual no-negligence finding rendered the entire indemnity clause, including the defense provision, inapplicable, emphasizing that the indemnity and defense clauses pertained to separate obligations. The trial court in that case correctly held that requiring a finding of negligence before the defense obligation was triggered would render meaningless the defense obligation and contravene Civil Code section 2778 and the Supreme Court’s admonition that a duty to defend arises out of an indemnity obligation as soon as the litigation commences. Unlike the duty to defend, a contractual duty to indemnify does not arise until liability is proven. <i>Aluma Systems, supra</i>. In <i>Aluma Systems</i>, the court emphasized that cases finding an immediate duty to defend were inapplicable to the separate question of whether a duty to indemnify had yet accrued. But MTR here isn’t seeking adjudication on the indemnity issue. It is requesting adjudication as to whether “MTR owes a duty to reimburse Vincent for all attorney fees, costs and expenses incurred in defense of this action.” A subcontractor’s duty to defend a general contractor requires the subcontractor to pay for defense costs relating to its work as the costs arise, and even if it is later determined the allegations against the subcontractor
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		were unsuccessful or even frivolous. <i>Pulte Home Corp. v. CBR Electric Inc.</i> (2020) 50 Cal.App.5th 216. This stands in contrast to the duty to indemnify, which is contingent on a final determination of liability. In light of the above, the court grants summary adjudication as to both noticed issues. Vincent has met its initial burden showing a valid contract between the parties that provides for indemnity in the event of an action such as this against Vincent. MTR has not met its now shifted burden showing a triable issue of fact thereto. RULING: Cross-complainant Vincent Builders, Inc. dba Hiebsch Custom Homes' motion for summary adjudication as to its duty to defend claims against cross-defendant Mike Taylor Roofing is GRANTED in its entirety. Vincent has met its initial burden showing a valid agreement on MTR's part to defend Vincent against the claims related to the Shannon residence as a matter of law. MTR has not refuted its now shifted burden raising a triable issue of fact thereto. The use of the terms "consultant" and "sub-consultant" in the indemnity agreement do not relieve MTR of its obligation to defendant Vincent in this matter. Neither does the fact that MTR's liability for the damages claimed by the Shannons has yet to be determined defeat MTR's obligation to defend Vincent in this matter. Vincent's objection to MTR's evidence as to the deposition transcript of David Heibsch is overruled. Vincent's objection to MTR's exhibit B is sustained. Vincent's objections to the declaration of Thomas M. Olsen are overruled. Vincent's request for judicial notice is granted.
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		Moving Party shall give notice.
4	Doe vs. Unruly Agency LLC 2023-01345140	Motion for Judgment on the Pleadings Defendant Unruly Agency LLC's Motion for Judgment on the Pleadings Defendant Unruly Agency LLC's Motion for Judgment on the Pleadings is DENIED. (Code Civ. Proc. §438, subd. (c).) Requests for Judicial Notice Defendant Unruly Agency LLC's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the up to date version of the JAMS rules applicable to the Parties' prior aborted attempt to arbitrate the claims alleged here. (Evid. Code §452, subd. (h); Emerald Aero, LLC v. Kaplan (2017) 9 Cal.App.5th 1125, 1133 fn. 5 [taking judicial notice of arbitration rules pursuant to Evid. Code §452, subd. (h).].) The Court takes judicial notice of the request for dismissal entered on 7/9/24 in the matter of Jane DOE v. Unruly Agency LLC (LASC Case No. 21STCV31028). (Evid. Code §452, subd. (d).) Plaintiff Jane DOE's Request for Judicial notice is GRANTED. The Court takes judicial notice of the Complaint filed on 8/23/21 in the matter of Jane DOE v. Unruly Agency LLC (LASC Case No. 21STCV31028), the register of actions in the LASC action, the Notice of Related Case filed on 6/26/24 in the LASC action, and the dismissal entered on 7/9/24 in the LASC action. (Evid. Code §452, subd. (d).) Plaintiff's Evidentiary Objections The Court rules on Plaintiff's evidentiary objections as follows: Objections 1-3: The matters objected to are not material to the Court's determination of